

Jainath Sharma v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 1 February 2023 · WRIT - C No. 2605 of 2023 · **Disposed after withdrawal of the theft demand; fresh Supply Code proceedings allowed.**

HEADNOTE

On the Electricity Department's statement that the demand notice dated 11.10.2022 for theft dues stood withdrawn and that the consumer would be heard before a fresh order, the writ was disposed of, with liberty to the respondents to proceed afresh strictly under the procedure prescribed by the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Jainath Sharma petitioned the Allahabad High Court to quash the demand notice dated 11 October 2022 issued by respondent no. 3 for electricity dues in a theft case. On 25 January 2023 the respondent Corporation sought time to ascertain the recovery's status. On 1 February 2023 counsel for the Electricity Department stated that the notice had been withdrawn and that the petitioner would be heard before a fresh order, a stand repeated in the short counter affidavit filed that day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh proceedings after withdrawal of a theft-dues demand

HOLDING

The petition was disposed of because the Electricity Department stated that the demand notice dated 11.10.2022 for recovery of theft dues had been withdrawn and that the petitioner would be given a hearing before a fresh order, a stand also taken in the short counter affidavit. The respondents were left at liberty to proceed afresh strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

¶ 1-2

FLAG The order invokes the Electricity Supply Code 2005 and prescribes no clause number.

PRINCIPLE TAGS

UP-2005::fresh-proceedings-per-code-procedure Once the impugned theft-dues demand was withdrawn, the writ was closed and any fresh order could be passed only after hearing the consumer and strictly in accordance with the procedure under the Electricity Supply Code, 2005. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN AND WHAT DUES, IF ANY, ARE RECOVERABLE.

The impugned notice was withdrawn without adjudication. Liability and quantum were left to a fresh order after hearing, under the Supply Code procedure. ¶ 1-2